

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Miskovski	Team: Squad #3	CCRB Case #: 201810629	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 12/19/2018 5:00 PM	Location of Incident: PSA 3 Stationhouse	Precinct: 83	18 Mo. SOL 6/19/2020	EO SOL 2/3/2021	
Date/Time CV Reported Fri, 12/21/2018 4:49 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 12/21/2018 4:49 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Audrey Wise	02138	929372	PSA 3

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Geury Martinez	21751	955134	PSA 3
2. SGT Deshon Grantham	2839	925383	PSA 3

Officer(s)	Allegation	Investigator Recommendation
A.SGT Audrey Wise	Abuse: Sergeant Audrey Wise threatened to notify Administration for Children's Services.	
B.SGT Audrey Wise	Abuse: Sergeant Audrey Wise refused to provide her name to § 87(2)(b)	

Case Summary

On December 21, 2018, § 87(2)(b) filed this complaint with CCRB intake via phone.

On December 19, 2018, at approximately 5:00 p.m., § 87(2)(b) entered the PSA 3 stationhouse with her daughter and son. § 87(2)(b) spoke with several officers about filing a complaint against the father of her children, who had already filed a complaint against § 87(2)(b). The officers refused to take § 87(2)(b)'s complaint, causing her to request to speak to a supervisor. Sergeant Audrey Wise was called in from her office in the stationhouse to speak with § 87(2)(b). Sgt. Wise also refused to process § 87(2)(b)'s complaint, causing an argument. During this argument, Sgt. Wise told § 87(2)(b) that she would call ACS on § 87(2)(b) (Allegation A: Abuse of Authority, § 87(2)(g)). § 87(2)(b) asked Sgt. Wise for her name, but Sgt. Wise did not provide it and walked away from § 87(2)(b) (Allegation B: Abuse of Authority, § 87(2)(g)). § 87(2)(b) continued to stand inside the stationhouse lobby demanding Sgt. Wise's name. Eventually, one of the officers of the precinct gave the phone number of the stationhouse and Sgt. Wise's name on a slip of paper to § 87(2)(b). § 87(2)(b) left the stationhouse.

Video footage of PSA 3 stationhouse surveillance on December 19, 2018, was obtained and shows the argument in question, but without audio [Board Review 06].

Findings and Recommendations

Allegation (A) Abuse of Authority: Sgt. Audrey Wise threatened to notify Administration for Children's Services.

Allegation (B) Abuse of Authority: Sgt. Audrey Wise refused to provide her name to § 87(2)(b).

In her testimony to the CCRB, § 87(2)(b) stated that on December 19, 2018, at approximately 5:00 p.m., she arrived at the PSA 3 stationhouse with her daughter and son, waiting at the half door located in the lobby [Board Review 01]. § 87(2)(b) wanted to make a complaint against the father of her children and told this to several officers, one of whom was identified by the investigation as Police Officer Geury Martinez. § 87(2)(b) wanted to file a complaint because the father of her children had her arrested for a dispute that ended with a temporary order of protection. However, § 87(2)(b) knew that the father of her children constantly attempts to see her and that would violate the order of protection; she feared that he would use the order against her when it would cross his mind to do so, especially if she refused his romantic advances, as she had done previously. She also disputed the basis of her arrest and planned to fight it in court, because she did not want it to reflect badly on herself and her children.

The officers present told § 87(2)(b) that she could not file this complaint, and § 87(2)(b) then asked to speak to a supervisor.

Sgt. Audrey Wise, dressed in plainclothes, came out to speak with § 87(2)(b) and told her the same information: she could not file this complaint. § 87(2)(b) who had been having problems not only with the father of her children, but also the neighbors in her NYCHA building, became upset and told Sgt. Wise that the PSA has not done anything for her. § 87(2)(b)

attempted to explain how her neighbors were mentally unwell and would terrorize not only § 87(2)(b) but also other residents on their floor. § 87(2)(b) by her own admission, was upset and cursed at Sgt. Wise when she stated that she would not help § 87(2)(b) § 87(2)(b) stated that she would go to the 83rd Precinct to file her reports, but Sgt. Wise responded that once the report were transferred to PSA 3, she would take it out of the system. § 87(2)(b) cursed at Sgt. Wise, stating, “Fuck you, what kind of woman are you? That is so messed up. I can’t believe this.” At this moment, § 87(2)(b) felt like she should call the police, but realized she was already speaking to the police.

Sgt. Wise then stated, “That’s how you express yourself around your children? Look at you; I’m calling ACS because I can tell you’re abusive.” § 87(2)(b) stated that she never laid a finger on her children. Her daughter and son were in pants and their winter coats. Neither child had bruising nor visible marks from any possible cause. § 87(2)(b) asked Sgt. Wise for her name, but Sgt. Wise said, “I’m not dealing with you,” and walked away.

§ 87(2)(b) stood at the half-door and asked the surrounding officers if what had just happened was fair. She also asked them to give her Sgt. Wise’s name, which was, at that time, unknown to § 87(2)(b). One of the officers told § 87(2)(b) that it was not right for her to cry in front of her children. § 87(2)(b) complained to the officers about their lack of compassion of the officers and asked them to try to convince Sgt. Wise to not call ACS.

Finally, after about ten minutes, one officer, identified by the investigation as PO Geury Martinez, gave § 87(2)(b) a piece of paper with the number of the stationhouse and Sgt. Wise’s name written on it. § 87(2)(b) left the stationhouse.

The next, day workers from ACS arrived and checked her children for marks, checked the fridge for food, and questioned the children. The workers told § 87(2)(b) that someone had made a complaint stating that § 87(2)(b) was neglectful and abusive, but did not mention any police officers.

§ 87(2)(g) § 87(2)(b) and her mother waited in the lobby to speak with police officers about filing a complaint. The officers would not take her complaint, so § 87(2)(b) asked to speak with a manager. Sgt. Wise, in plainclothes, then spoke with § 87(2)(b) and similarly refused to file the complaint. § 87(2)(b) stated that she would go to another precinct, but Sgt. Wise stated that if § 87(2)(b) went to another precinct, she would go into the computer and cancel the complaint. § 87(2)(b) grew angry and started to curse at Sgt. Wise. § 87(2)(b) and her brother began to cry because none of the officers were helping their family. Sgt. Wise stated that § 87(2)(b) was scaring her children, and that she would call ACS.

Neither Sgt. Wise, nor any other officer, spoke with § 87(2)(b) or her brother. They did not ask any questions of them. § 87(2)(b) and her brother were in full length pants and their coats. § 87(2)(b) states that neither she nor her brother had any bruises nor marks on their skin.

§ 87(2)(b) asked Sgt. Wise for her name, but Sgt. Wise turned and left without speaking any further. § 87(2)(b) stayed in the stationhouse, asking officers to try to convince Sgt. Wise not to call ACS and to provide her name. Finally, a female officer in plainclothes gave § 87(2)(b) a piece of paper with the name of Sgt. Wise. § 87(2)(b) her mother and brother, then left the stationhouse.

The next day, workers from ACS arrived and checked § 87(2)(b) and her brother for marks on their body.

In her statement to the CCRB, Sgt. Audrey Wise stated that she knew of a prior incident involving § 87(2)(b) and the children's father from § 87(2)(b), where § 87(2)(b) had sprayed the children's father with mace [Board Review 03]. On § 87(2)(b), § 87(2)(b) was arrested for the incident and released.

On December 19, 2018, Sgt. Wise worked as the Domestic Violence Sergeant, was dressed in plainclothes, and was in her office when she was approached by the TS Operator who told Sgt. Wise that a woman wanted to see her to make a complaint. Sgt. Wise walked into the lobby, approached § 87(2)(b) and noticed that she appeared anxious as she stood next to her § 87(2)(b) daughter and § 87(2)(b) son. § 87(2)(b) requested that a report be filed against the father of her children to have him arrested. Sgt. Wise asked § 87(2)(b) to follow her into a private room to discuss the incident, but § 87(2)(b) refused, stating that her children needed to hear the complaint. Sgt. Wise was uncomfortable speaking about the complaint in front of children.

Sgt. Wise informed § 87(2)(b) that no crime had been committed by the children's father; therefore, no complaint could be filed. § 87(2)(b) became very loud and appeared to be irrational to Sgt. Wise. This irrationality consisted of the fact that § 87(2)(b) stated her neighbors in her building were listening to her through the door. Sgt. Wise then told § 87(2)(b) that she was acting irrationally in front of her children. § 87(2)(b) again demanded that a report be filed. Sgt. Wise stated that § 87(2)(b) could go to family court for the issue, but that the PSA could do nothing in this case. § 87(2)(b) then told Sgt. Wise what she should be doing and cursed at her. Sgt. Wise did not understand why § 87(2)(b) was jumping from topic to topic in the conversation.

Sgt. Wise then stated that if § 87(2)(b) continued to act irrationally, she would call ACS, because it was scaring her children. The children did not say one word and appeared to be intimidated, just standing by their mother. Sgt. Wise did not notice anything about the children except for their quietude and well-kept looks. Sgt. Wise did not speak to the children.

After being told that ACS would be called, § 87(2)(b) grew angrier and continued to curse at Sgt. Wise. Sgt. Wise then left and walked back to her office. At some point in the conversation, § 87(2)(b) asked for Sgt. Wise's name, and Sgt. Wise provided her name and shield verbally to § 87(2)(b).

Sgt. Wise read § 87(2)(b)'s history while in her office. She saw that there was a previous incident with § 87(2)(b) and the children's father where the daughter was present. Sgt. Wise did not know of this history when speaking with § 87(2)(b). From her interaction with § 87(2)(b) and her history, Sgt. Wise determined that it was in § 87(2)(b)'s best interest to call ACS so that § 87(2)(b) can receive services and counselling and that the children would be put on the radar for monitoring. Sgt. Wise stated that was the only reason that she made the call to ACS.

At no point did Sgt. Wise direct an officer to give her name to § 87(2)(b).

In his statement to the CCRB, Sgt. Deshon Grantham stated that he was the desk sergeant on December 19, 2018 [Board Review 04]. He heard a commotion at the front door: Sgt. Wise and a civilian were arguing. Sgt. Grantham approached the front door, because he heard the civilian, § 87(2)(b) getting loud. Sgt. Grantham told Sgt. Wise to step away and to let the civilian calm down. Sgt. Wise stepped away, and Sgt. Grantham returned to his desk.

Sgt. Grantham did not recall any specifics of the argument nor if § 87(2)(b) asked for Sgt. Wise's name. Similarly, Sgt. Grantham did not know if anyone mentioned ACS. He simply

went in to defuse the argument because he saw the anger of the civilian. Sgt. Grantham could not remember the state of the children.

In his statement to the CCRB, PO Geury Martinez stated that on December 19, 2018, he worked at the Telephone Switchboard Operator [Board Review 05]. § 87(2)(b) and her children approached the half-door of the main lobby at approximately 5:00 p.m., and PO Martinez spoke with them. § 87(2)(b) was accompanied by her daughter, who appeared to be nine or ten years old, and her son, who appeared to be six years old. § 87(2)(b) wished to make a complaint against the father of her children in retaliation for the complaint that he had filed against her. PO Martinez informed § 87(2)(b) that she could not make a retaliatory complaint. She requested to speak to a supervisor. PO Martinez went to get the domestic violence supervisor, but she was not in her office at the time, so PO Martinez asked PO Champness, an officer from domestic violence, to speak with § 87(2)(b).

PO Champness and PO Martinez returned to § 87(2)(b) and stated the same thing: they could not make the retaliatory complaint. § 87(2)(b) grew angry and requested again to speak with a supervisor. PO Martinez then found and called Sgt. Wise, who came to speak with § 87(2)(b).

Sgt. Wise explained the same protocol to § 87(2)(b). § 87(2)(b) began to curse at Sgt. Wise. PO Martinez noticed that the children appeared uncomfortable because they started to cry. § 87(2)(b) was yelling with a high pitch and cursing. PO Martinez believed that it was this yelling that caused her children to cry. PO Martinez did not remember if § 87(2)(b) asked Sgt. Wise for her name.

Sgt. Wise then stated that she was going to call ACS because of § 87(2)(b)'s behavior. PO Martinez did not know of any other reason that Sgt. Wise gave for calling ACS aside from § 87(2)(b)'s behavior.

After Sgt. Wise left, § 87(2)(b) remained in the lobby and asked for Sgt. Wise's name several times. PO Martinez then provided § 87(2)(b) with a paper on which he had written Sgt. Wise's name. PO Martinez was not directed by Sgt. Wise nor any other officer to provide the name. Once § 87(2)(b) received the paper, she left.

The stationhouse video footage, contained in IA#42, shows § 87(2)(b) and her two children enter at 18:45 [Board Review 06]. § 87(2)(b) is shown speaking with her children, and § 87(2)(b) smiles. They are dressed in coats. At 23:35, § 87(2)(b) begins to speak with PO Martinez. At 32:30, Sgt. Wise enters and begins to speak with § 87(2)(b). At 37:35, something upsets § 87(2)(b) and she begins to gesticulate more emphatically than previously during the conversation because of something Sgt. Wise has said to her. Sgt. Wise then begins to respond in kind, gesturing towards § 87(2)(b) and then to her children, while her facial features show a more animated tone than previously in the discussion. Whatever is said at this point makes § 87(2)(b) leave and point at Sgt. Wise. Sgt. Wise's head is nodding and moving as if speaking back, especially in how Sgt. Wise leans over the door towards § 87(2)(b)'s direction.

At 38:13, Sgt. Grantham walks up to Sgt. Wise and taps her on the shoulder, prompting her to leave. It is not completely clear from the body language, but it appears that Sgt. Grantham also hears Sgt. Wise getting heated due to Sgt. Grantham first turning to Sgt. Wise when he more explicitly pays attention to the argument. At 38:20, Sgt. Wise turns back around and says something further, but Sgt. Grantham is shaking his head at Sgt. Wise and working on convincing her to just leave and stop the responding to § 87(2)(b). Sgt. Wise says something more, points at § 87(2)(b) and then walks away with Sgt. Grantham. Neither § 87(2)(b) nor her brother

are seen to be crying heavily; but instead, § 87(2)(b) spends most of the time on her phone and looking uncomfortable, and staring towards the ground while leaning against the window.

From 38:30 to 56:32, § 87(2)(b) is crying and speaking with officers. At 58:17, PO Martinez brings § 87(2)(b) a piece of paper. At 58:51, § 87(2)(b) and her children leave.

Patrol Guide Procedure 215-03 states that the purpose of emergency removals or investigation of reporting abused, neglected, or maltreated children is to protect children from abuse, neglect or maltreatment by instituting emergency removal proceedings if a child is in immediate danger, or conduct an investigation of a potential abuse situation where a child is in no imminent danger, and report the findings to the appropriate authorities [**Board Review 07**].

Patrol Guide Procedure 203-09 states that officers must courteously and clearly state your rank, name, shield number and command, or otherwise provide them, to anyone who requests them to do so. They must allow the person ample time to note this information [**Board Review 08**].

It is undisputed that Sgt. Wise informed § 87(2)(b) that she would call ACS on § 87(2)(g)

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Sgt. Wise stated that she could not remember when, but that she provided her name when asked. Both § 87(2)(b) and § 87(2)(b) state that § 87(2)(b) asked Sgt. Wise for her name at the end of the argument, but Sgt. Wise dismissed § 87(2)(b) without providing her name. Neither Sgt. Grantham nor PO Martinez could recall if Sgt. Wise gave her name, nor if she was asked to provide it. In the silent stationhouse footage, the argument can be seen to be escalating enough that Sgt. Grantham, consistent with his statement, steps in and taps Sgt. Wise on the shoulder. § 87(2)(g)

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§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Civilian and Officer CCRB Histories

- This is the first CCRB Complaint to which § 87(2)(b) [REDACTED] has been a party [**Board Review 09**].
- Sgt. Audrey Wise has been a member of service for seventeen years and has been a subject in three other CCRB complaints and five allegations, none of which were substantiated.
 - § 87(2)(g) [REDACTED]
[REDACTED]

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- On April 2, 2019, a request to determine if a Notice of Claim was filed was submitted; confirmation from the Office of the New York City Comptroller will be forwarded upon receipt [**Board Review 10**].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date